

26PR00417 Matter of Durie Family Trust

County: sonoma

Division: Probate

Hearing date: 2026-07-24

Motion: Petition for Order Determining Property to be Titled in Name of Trust

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Tentative Ruling: This matter is CONTINUED to November 13, 2026 at 9:30 a.m. in Department 63 to allow the petitioner an opportunity to address the Court's concerns, as stated below.

The assets at issue here are four (4) financial accounts. Two of the accounts are Morgan Stanley accounts. Morgan Stanley is not served as required by California Probate Code (Prob C) §851(a)(2). Two of the accounts are Teachers Insurance and Annuity Association of America (TIAA) 403(b) retirement accounts. TIAA is not served as required by Prob C §851(a)(2). The petitioner should note that Prob C §851(a) requires service of the notice of hearing and a copy of the petition in the manner provided by California Code of Civil Procedure §413.10 et seq. (i.e. in the manner of a summons.)

The Court's other concern relates to whether the accounts at issue here can be deemed trust assets if they are Employee Retirement Income Security Act (ERISA) accounts. ERISA generally prohibits the assignment of retirement plan benefits. In re Marriage of DeBenedetti & Ensberg (2025) 110 Cal.App.5th 1035, 1043, review denied (July 30, 2025). The petition does not specifically indicate whether the accounts are subject to ERISA. The account statements for the TIAA accounts say these are "403(b)" accounts, and these are the Court's primary concern. As for the two Morgan Stanley accounts, these do not appear to be ERISA accounts, but as the matter must be continued for notice defects, the Court asks counsel to confirm whether the Morgan Stanley accounts are subject to any restraints on alienation/otherwise cannot be trust assets as a matter of law. The petitioner should address this issue by verified supplement, to be served and filed at least ten (10) court days prior to the continued hearing.

The Court notes that, if the assets at issue are ERISA accounts, the Court is instead inclined to treat this as a petition to order the institution to pay the proceeds of the accounts to the trustee, as if the trust had been properly named a pay on death beneficiary. Once the notice issue is cured, the Court is not averse to making an order that the trust is in effect the beneficiary of the accounts, particularly in the absence of any opposition, or difference between heirs of the trust and heirs of a probate estate. If the petitioner decides to proceed in this manner, they must so indicate via the aforementioned verified supplement and provide legal authority for this approach, even if it is only the equitable power of the Court. Said supplement shall be served and filed at least 10 days prior to the continued hearing. The petitioner must also lodge an updated proposed order stating that the Court is not declaring the assets to have been placed in trust in the past (as it would with a Prob C §850 Petition) but only directing the payment of funds now.

Finally, the Court directs the counsel's attention to California Rule of Court rule 1.201(a), which states in part: "If financial account numbers are required in a pleading or other paper filed in the public file, only the last four digits of these numbers may be used." Any future filings should comply with this rule.